

		and/or amendment to the settlement agreement rather than setting forth the text in paragraph 4; and d. The proposed order and judgment must state how notice of entry of the order and judgment will be provided. The hearings on plaintiff's motion for final approval and motion for award of fees and costs is continued to <u>April 18, 2024 at 2:00 p.m.</u> in Department CX104 to enable the parties to address and respond to the above issues. A supplemental brief and other supporting documents shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. Plaintiff is ordered to give notice and to file a proof of service at least 5 court days before the hearing.
2	Danforth v. Placentia-Linda Hospital, Inc. 2023-01321351	Off calendar.
3	Martinez v. EM Tortillas, LLC 2022-01263512	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$225,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Are the parties aware of any related pending actions or other cases that may be impacted by the settlement? 2. Is the "Plaintiff's General Release Payment" (Settlement Agreement ¶ 18) in addition to the "enhancement payment" sought in the motion for approval? The "Plaintiff's General Release Payment" appears to be a payment to settle plaintiff's individual claims in exchange for plaintiff's release. <i>See id.</i> The enhancement payment described in the motion appears intended to compensate plaintiff for her efforts working on the litigation. If

		plaintiff seeks an enhancement payment, why is \$10,000 an appropriate amount? 3. Do the parties intend for the PAGA Members to be able to dispute the number of pay periods? If so, the settlement agreement (and notice) should be amended to address the dispute procedure. <u>As to the notice:</u> 4. The notice should revised as necessary consistent with the above. 5. The notice should include the gross settlement amount, the net settlement amount, and the portions allocated to the LWDA and the aggrieved employees. The notice should also explain how the individual payments were calculated. 6. The notice should advise the aggrieved employees that they cannot opt out of the settlement and that even if they do not cash their checks they will be bound by the release. 7. The settlement administrator's declaration (Lawrence Declaration, ROA 50) states the settlement administrator's fees will not exceed \$2,500 (<i>id.</i> ¶ 17 & Ex. B). Plaintiff's motion states the settlement administrator's fees will not exceed \$4,000. Plaintiff should address this discrepancy in her supplemental papers. 8. The settlement administrator's invoice (Lawrence Decl. (ROA 50) Ex. B) states a language translation will be prepared. Will the notice be translated into a language other than English? If so, a certified copy of the translated notice (together with the English-language copy) should be attached to the proposed order as an exhibit. <u>As to the proposed order and judgment:</u> 9. The proposed order and judgment should be revised as necessary consistent with the above. 10. Counsel's contact information should be removed from the caption page of the proposed order and judgment. 11. "Dept. C13" should be deleted on the caption page and "Department CX104" should be inserted. 12. In paragraph 2, "he" and "his" should be "she" and "her." 13. The proposed order and judgment should include the names of all of the parties to the settlement.
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		14. Paragraph 18 should include a reference to Civil Procedure Code section 664.6. 15. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 9:00 a.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval is continued to <u>April 25, 2024 at 2:00 p.m.</u> in Department CX104 to permit the parties to address and respond to the above issues. A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. <u>Status Conference</u> The court has read and considered plaintiff's case management conference statement filed December 21, 2023 (ROA 59). In light of the court's concurrent ruling on plaintiff's motion for approval of a PAGA settlement, the January 11, 2024 status conference is vacated. Clerk to give notice.
4	Mora v. Diamond ZB Staffing Services, LLC, et al. 2019-01104920	<u>Plaintiff's Motion for Issue, Evidentiary and Monetary Sanctions</u> Plaintiff Marisela Mora seeks issue and evidentiary sanctions against defendant Diamond ZB Staffing for allegedly violating the court's February 16, 2023 order (Judge Peter Wilson, ROA 260) and August 17, 2023 order (Judge Peter Wilson, ROA 435) directing Diamond ZB to provide Code-compliant responses, including document production, to plaintiff's Requests for Production (Set Two) Nos. 4, 5 and 6. Plaintiff seeks monetary sanctions in the amount of \$9,810 against Diamond ZB and its counsel, Michael Adreani and Chinye Uwechue of Roxborough, Pomerance, Nye and Adreani, LLP, jointly and severally. For the